

26STCV02217 26STCV02217

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 26STCV02217 Hearing Date: September 17, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

FAITH

NATHANIEL BECK

Plaintiff,

vs.

SAUGUS

UNION SCHOOL DISTRICT, et al.,

Defendants.

Case No.:

26STCV02217

Hearing

Date:

September

17, 2026

[TENTATIVE]

ORDER DENYING MOTION FOR
RECONSIDERATION

I. BACKGROUND

Plaintiff Faith Nathaniel

Beck ("Beck") reported believed misconduct by Defendant Charlotte Spainhower ("Spainhower") to appropriate personnel. Following this report, Spainhower and agents of Defendant Saugus Union School District ("SUSD") allegedly engaged in a retaliatory campaign against Beck. In addition, Defendants allegedly harassed Beck via misgendering and 'deadnaming' Beck. Beck sued Defendants for sixteen causes of action, including whistleblower retaliation, defamation, and gender-based harassment and discrimination.

On April 13, 2026, the Court granted Defendants' special motion to strike ("anti-SLAPP motion"), in part.

On June 18, 2026, Beck filed the instant motion "that the Court consider exercising its inherent authority to reconsider and correct discrete portions of the April 13, 2026, Anti-SLAPP order." Defendants opposed the motion. Beck replied.

II. LEGAL STANDARD

Section 1008, subdivision

(a), requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.)

The moving party "shall state by affidavit . . . what new or different facts, circumstances, or law are claimed to be shown." (§1008, subd. (a).) These requirements set forth "the

court's jurisdiction with regard to applications for reconsideration of its orders” (§1008, subd. (e).) Otherwise, “a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law.’”

(Ibid.)

Any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order, file a motion for reconsideration. (§1008, subd. (a).)

Whether “new” facts alleged are sufficient to satisfy the requirements of section 1008, subdivision (b), is a question confided to the sound discretion of the trial court, with which the appellate court will not interfere absent an obvious showing of abuse. (Graham v. Hansen (1982) 128 Cal. App. 3d 965, 971.)

III. discussion

Beck requests the Court

‘consider exercising its inherent authority to reconsider and correct discrete portions of the April 13, 2026, order’ on the basis the Court wrongfully excluded Beck’s evidence and allegedly misinterpreted records and documents. Beck asserts that this is not a section 1008 motion for reconsideration, as this is not based upon new or different facts, circumstances, or law, but instead relies upon the Court’s authority recognized in *Le Francois v. Goel* (2005) 35 Cal.4th 1094 to “correct an interim ruling based on an identifiable mistake in the existing record.” (Mot., p. 8, ¶¶ 16-18.)

However, *Le Francois* specifically prohibits this exact request: “a party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of section 437c, subdivision (f)(2), or 1008.” (Id. at 1108.) “Unless the requirements of section 437c, subdivision (f)(2), or 1008 are satisfied, any action to reconsider a prior interim order must formally begin with the court on its own motion.” (Ibid.) The Court does not find a basis to reconsider the anti-SLAPP motion, a motion with procedural significance, on its own motion.

This motion may only be considered if it is deemed a renamed motion for reconsideration. However, Beck

has no right to bring such a motion at this time. Pursuant to section 1008, subdivision (a), any motion for reconsideration must be filed within 10 days of service of the order to be reconsidered upon the moving party. Defendants served notice of the ruling on Beck on April 16, 2026, via electronic transmission. Pursuant to section 1010.6, subdivision (a)(3)(B), any time period or date prescribed by statute shall be extended two court days upon service by electronic transmission. Therefore, any motion for reconsideration needed to be filed and served by April 28, 2026.

Beck did not file and serve this motion until June 18, 2026. As this motion was filed almost two months after the statutory deadline, the Court denies the motion.

IV. CONCLUSION

Beck's motion for reconsideration is therefore DENIED.

Defendants are ordered to give notice.

DATED:
September 17, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE
TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this tentative ruling, the party must send an email

to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.